

FEDERAL MARITIME COMMISSION
Office of the Administrative Law Judges

CE GLOBAL NETWORK LLP, *Claimant*

v.

EVERGREEN SHIPPING AGENCY (AMERICA) CORPORATION,
AS AGENT FOR EVERGREEN GROUP D/B/A EVERGREEN LINE,
Respondent.

DOCKET NO. 2071(I)

Served: October 1, 2026

ORDER OF: Michelle J. BECKER, *Small Claims Officer.*

INITIAL DECISION DISMISSING PROCEEDING¹

On August 12, 2026, the Secretary of the Federal Maritime Commission (“Commission”) issued a notice that Claimant, CE Global Network LLP, filed a small claim for informal adjudication (“Claim”) against Respondent, Evergreen Shipping Agency (America) Corporation, as Agent for Evergreen Group d/b/a Evergreen Line. The Secretary noted that the Claim was mailed to Respondent the same day and Respondent was required to file a response to the complaint and indicate whether it consents to the adjudication of the Claim under the informal procedures provided at Subpart S of the Commission’s Rules of Practice and Procedure (46 C.F.R. §§ 502.301-305) by September 8, 2026.

The Office of Administrative Law Judges did not receive a response to the Claim from Respondent. However, Claimant sent an email to the Office of the Secretary, copying Respondent, on September 2, 2026, indicating that the parties had entered into a settlement agreement, disposing of this matter. On September 28, 2026, the Chief Administrative Law Judge issued a Notice of Assignment of Small Claims Officer (“Notice”), appointing the undersigned to serve as the Small Claims Officer in this proceeding.

Claimant’s September 2, 2026, email stated that the “parties have reached a commercial resolution of this matter. Claimant accordingly withdraws its claim with prejudice and respectfully requests that the docket be closed.” The parties were then informed, by way of an email from OALJ, that the Small Claims Officer typically reviews the settlement agreement along with the request to dismiss the proceeding. This email also requested that a copy of any written settlement agreement be provided. Claimant replied on September 8, 2026, copying Respondent, and providing a copy of the settlement agreement, which was signed by both

¹ Pursuant to 46 C.F.R. § 502.304(g), this decision will become final unless the Commission elects to review it within 30 days of service.

parties. Claimant's September 8, 2026, email also stated: "With the written agreement now complete, we respectfully renew our request that the Small Claims Officer dismiss Informal Docket No. 2071(I) with prejudice and close the docket . . . Both parties have resolved this matter amicably and jointly seek its closure."

The Commission's consistent policy is to "encourage settlements and engage in every presumption which favors a finding that they are fair, correct, and valid." *Access One Transport, Inc., v. CMA CGM S.A.*, Docket No. 24-18, 2024 WL 5119296 at *1 (ALJ Dec. 10, 2024) (quoting *Inlet Fish Producers, Inv. v. Sea-Land Serv., Inc.*, 29 S.R.R. 975, 978 (ALJ May 9, 2002) and *Old Ben Coal Co. v. Sea-Land Serv., Inc.*, 21 F.M.C. 506, 512, 18 S.R.R. 1085, 1091 (ALJ Nov. 29, 1978)). Although this policy is generally followed, "the Commission does not merely rubber stamp any proffered settlement, no matter how anxious the parties may be to terminate their litigation." *Access One*, 2024 WL 5119296 at *2 (quoting *Old Ben Coal*, 18 S.R.R. at 1093). A settlement agreement that does not violate any law or policy and is free of fraud, duress, undue influence, mistake, or other defect that might make it unapprovable would likely be approved. *Id.* "[I]f it is the considered judgment of the parties that whatever benefits might result from the vindication of their positions would be outweighed by the costs of continued litigation and if the settlement otherwise complies with law the Commission authorizes the settlement." *Delhi Petroleum Pty. Ltd. v. U.S. Atlantic & Gulf/Australia - New Zealand Conf. and Columbus Line, Inc.*, 1988 WL 340657 at *7 (ALJ Aug. 12, 1988).

The signed settlement agreement does not show any indicia of fraud, duress, undue influence, or mistake. I find no indication that the settlement agreement violates any law or policy, or contains any other defect, which would render it unapprovable. The terms appear to be fair, reasonable, and adequate and avoid the need for costly and uncertain litigation. Accordingly, the settlement agreement is approved, and this proceeding is dismissed with prejudice.

It is therefore

ORDERED that the settlement agreement is **APPROVED**. It is

FURTHER ORDERED that this proceeding be **DISMISSED WITH PREJUDICE**.

SO ORDERED



Michelle J. Becker
Small Claims Officer